

The Court **GRANTS** Defendant's motion for summary judgment.

4. 9:00 AM CASE NUMBER: C23-02566  
CASE NAME: ALFRED GARZA VS. AMERIT FLEET SOLUTIONS, INC.  
\*HEARING ON MOTION IN RE: APPROVAL OF PAGA SETTLEMENT  
FILED BY: GARZA, ALFRED  
\*TENTATIVE RULING:\*

The Court grants Plaintiff's Unopposed Motion for Approval of PAGA Settlement/Final Judgment. The court shall sign the Proposed Order lodged with the Court on March 13, 2026. The Parties shall file a joint status report and declaration from the Administrator by September 11, 2026, advising the Court of the distribution of settlement funds. **The Court sets September 24, 2026 at 8:30 am in Dept. 32 for an Order to Show Cause re: Compliance with PAGA Settlement.**

5. 9:00 AM CASE NUMBER: C23-02622  
CASE NAME: LIBERTY BUSINESS ADVISORS OF SAN FRANCISCO, INC. VS. TOOV, INC.  
\*HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED COMPLAINT  
FILED BY: LIBERTY BUSINESS ADVISORS OF SAN FRANCISCO, INC.  
\*TENTATIVE RULING:\*

Plaintiff Liberty Business Advisors of San Francisco, Inc.'s Motion for Leave to File a First Amended Complaint ("FAC") is **granted**. Plaintiff shall prepare and submit the order, file and serve notice of entry of order, and file the FAC within 10 days of the hearing.

### **Background**

Plaintiff Liberty Business Advisors of San Francisco, Inc. filed this action against defendant Toov, Inc. to recover broker commissions allegedly owed under two listing agreements, one covering the sale of Toov's gas station business and one covering associated property at 1744 West San Carlos Street in San Jose. Toov had entered into an asset purchase agreement and a companion purchase and sale agreement to sell the business and property to Kesar Petroleum, Inc. Those transactions did not close. Kesar pursued a claim in arbitration against Toov to recover its deposit, and Toov ultimately released the deposit to Kesar, and paid Kesar an additional sum to resolve the dispute. Plaintiff alleges that under the terms of its listing agreements, Toov's default nonetheless triggered an obligation to pay plaintiff commissions in excess of \$225,000. The original complaint, filed against Toov and fictitiously named defendants, pleaded ten causes of action sounding in breach of contract.